

1 UNITED STATES DISTRICT COURT
2 FOR THE DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,

Plaintiff,

v.

MIKE JOHNSON, in his individual and
official capacity as Speaker of the United
States House of Representatives;

DONALD J. TRUMP, in his individual
capacity as former and current President of
the United States;

PAM BONDI, in her individual and official
capacity as Attorney General of the United
States;

BRENDAN CARR, in his individual and
official capacity as Chairman of the Federal
Communications Commission;

THE UNITED STATES HOUSE OF
REPRESENTATIVES;

ANTHROPIC PBC;

OPENAI, INC.;

APPLE INC.;

COMCAST CABLE

COMMUNICATIONS, LLC;

METR (MODEL EVALUATION &
THREAT RESEARCH);

and DOES 1-20, unknown co-conspirators,

Defendants.

Case No. 1:25-cv-02735-ACR

SR-1: PATENTLY-O ARTICLE

3
4 **SR-1: Patently-O Article**

5 **Source Document:** EXHIBIT C-12 Copyright Leadership Dismissed as AI Report Questions
6 Industry Practices-Patently Article.pdf

7 **Total Pages:** 2

8 **Created:** D:20251006153942+00'00'

9 America's leading patent law source

10
11 **transformative Changes: Copyright Leadership dismissed as AI Report**
12 **Questions Industry practices**

13 ay 12, 2025](<https://patentlyo.com/patent/2025/05/transformative-copyright-leadership.html>)

14 [☐paid](<https://patentlyo.com/tag/paid>) [☐Dennis

15 Crouch](<https://patentlyo.com/author/dennis-crouch>)

1 Dennis Crouch

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3 copyright world experienced a major shift in May 2025 with the

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5 upt dismissal of Dr. Carla Hayden (Librarian of Congress), followed by

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7 release of a landmark U.S. Copyright Office report on AI training that

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9 cluded many current industry practices likely do not qualify as fair

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11 , and culminating in the firing of Shira Perlmuter (Register of

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13 pyrights) just after the report's publication. This drama is not a reso□

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15 on of the legal question, but rather seems to intensify and further

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17 ticize the debates over whether AI developers must seek permission

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19 pay for the copyrighted works they use to train their systems. As the

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21 ort's opening paragraphs explain: "The stakes are high, and the consequences are often
22 described

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24 xistential terms."

25
26 ead the Report: Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-
27 Report-]([https://cdn.patentlyo.com/media/2025/05/Copyright-and-Artificial-Intelligence-](https://cdn.patentlyo.com/media/2025/05/Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf)
28 [Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf\)](https://cdn.patentlyo.com/media/2025/05/Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf)

29
30 re-Publication-Version]([https://cdn.patentlyo.com/media/2025/05/Copyright-and-Artificial-](https://cdn.patentlyo.com/media/2025/05/Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf)
31 [Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf\)](https://cdn.patentlyo.com/media/2025/05/Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf)

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33 report released last week in "pre-publication" form, titled "Copyright and Artificial
34 Intelligence,

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36 t 3: Generative AI Training," is the latest installment in the Copyright Office's attempt at
37 compre□

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39 sive examination of AI's intersection with copyright law. AI training often requires uploading
40 of

41
42 ire copyrighted works into the systems, and so is easily categorized as prima facie copyright
43 in□

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45 gement -- absent a license or fair use excuse. The 100+ page report offers a nuanced analysis,
46 but

1
2 mately suggests that in many situations the use will not be fair use.

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4 quick release of this report appears to have circumvented folks in leadership outside of the
5 Office.

6 hough it has not formal legal weight, courts are likely to consider its reasoning as persuasive
7 au□

8
9 rity as they decide the dozens of AI training copyright cases currently pending.

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11 **date** : Todd Blanche and Paul Perkins have been tapped by President Trump to be acting
12 Librarian

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14 Congress and Copyright Registrar, respectively. Todd Blanche, recently appointed as Deputy

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16 orney General at DOJ has spent the past two decades litigating fraud and corruption issues,
17 either

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19 prosecutor or for the defense. Most recently, Blanche was defense attorney during a 2024
20 New

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22 k criminal trial, which resulted in Trump's conviction on 34 felony counts. Perkins has been
23 with

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25 J since 2016, and is an Associate Deputy Attorney General. Perkins spouse, Hilary Perkins
26 was

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28 ped earlier this year to be chief counsel for the Food and Drug Administration. However,
29 Senator

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31 h Hawley forced her removal with arguments that she was pro-abortion.

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37 **about Dennis Crouch**

38 [w Professor at the University of Missouri School of Law. View all posts by Dennis Crouch
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